Exonerated

By Jessica Blank and Erick Jensen

Sonia (aka Sunny) white 50. A bright, pixie-ish yoga teacher from California; her lightness and positivity contrast with moments of great depth and clarity.

SUNNY: Sunny Jacobs. *(beat)* In 1976, I was sentenced to death row, which for me wasn't a row at all, because I was the only woman in the country who had the sentence of death. So I suggested they put me in the same cell as my husband! But let me start at the beginning. *(beat)*

INTRODUCTION

*Today there are roughly 2 million people incarcerated in the US. An alarming number of them are wrongly convicted, in some cases spending decades behind bars for crimes they did not commit. According to the University of Michigan's National Registry of Exonerations established in 1989 as of January 2025, 3,658 people have been exonerated due to false or misleading forensics evidence, a false confession, mistaken witness identification or official misconduct by arresting officers.**

Sunny Jacobs was only 26 when her life changed forever. This is her story. Exonerated by Jessica Blank and Erick Jensen

SUNNY: **(Pg 22-23)** When I was twenty-six, Jesse and I had been together for three years. We weren't officially married, but I considered him my husband, you know. Our daughter had just been born, and Jesse said he was gonna get himself a regular job, maybe painting murals or something, but he just needed to go to Florida one last time to do a little deal. Now, I didn't want to know about this deal, because I knew it wasn't positive; it wasn't violent, but it wasn't positive. And finally he calls and says that the deal fell through, and not only is he broke and has no way home, but he's staying with some *girl!* So, of course, me, instead of saying, "Well, when you get it together, me and the kids will be here waiting for you," I said, "I'll be right there to getcha!"

My son Eric was nine, and I was driving, shifting, singing, and nursing Tina all at the same time. So anyway, we get there, get Jesse, the car dies, and we're all stuck in Florida. And

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so Jesse says he'll ask this guy he knows if we can stay with him until we can scrape the money together to get home. And that's when I met Walter Rhodes. **(Pg 26-27)** [He] agreed to give me, Jesse, and the kids a ride. And we left, but the traffic got bad and it was getting late, so the decision was made to pull off the road until morning.

And according to the police reports, the cops came to do a routine check on the rest area. And when they look in the window, they see a gun between Rhodes's feet. They order him out of the car and ask for his ID. The policeman calls in the ID information, and then tells Rhodes . . .

BLACK COP: Stand over there, I'm finished with you.

SUNNY: And then they ask my husband Jesse to get out. And then the police radio comes back with the announcement that Rhodes is on parole -- and possession of a gun is a parole violation. And that changed everything. The policeman drew his gun. He said-

BLACK COP: Okay, the next one to move is dead.

SUNNY: It all happened so fast, you know. I just ducked down to cover the kids. *(four loud gunshots)* And then it was silence. I mean ***dead silence***. There wasn't an earthly sound. And then Rhodes runs around the front of the police car with a gun in his hand . . .

RHODES: Come on, we're gonna take the police car!

SUNNY: I mean, Rhodes had just killed two policemen, had a gun, and was telling us to get in the police car. And, you know, people say, "Why didn't you just refuse to go?" And I think, you've never been at the other end of a gun, have you? So we get in the police car. We couldn't speak . . . We were kidnapped at that point, and we just didn't dare.

But then all of a sudden, the traffic gets terrible, and you can hear the helicopters, and I know there must be a roadblock. "Hey, we're gonna be ***rescued!*** Help is on the way, you know, the cavalry!" And out of nowhere, Rhodes makes a sharp left to try and avoid the roadblock -- and this whole line of policemen opens fire on the car. The car was literally bouncing with all the bullets. So again I cover the kids. And finally we crash. And a bunch of cops surround us, and I'm trying to explain that we were kidnapped, but they just wouldn't listen.

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******In Sunny's interrogation room******

WHITE COP 1: Are you aware of the fact that you have been charged and arrested on First Degree murder?

SUNNY: *[beat]* You just told me now. **(Pg 29-30)** *[to audience]* So I actually did at first try to lie, and I told the cops I didn't know these people, I was just a hitchhiker. Stupid. Because of course they think you're lying because you did something. But I was just scared.

WHITE COP 2: Let me ask you point blankly: Who shot the highway patrolman and the other officer?

SUNNY: I don't know . . . I'm ***sorry***. People were shot. The patrolmen were shot and that's what this is all about -- I don't know -- *[breaking down]* This is very upsetting because how does -- this guy, he told -- he just told us to sit in the car, you know -- and I'll stay here and I won't make any calls and I haven't done anything except the wrong choice of people and I just -- I don't want to be blamed for something that I had nothing to do with and I don't want them to take the kids away and I -- 'cause the baby's crying and crying and crying and Eric's scared and *(long pause while she composes herself)*

(Pg 31) *[to audience]* And what I didn't know was at the same moment I was being questioned and Jesse was being questioned, was that Rhodes, from his hospital bed, was negotiating a deal. He'd been in prison before, he knew how the system worked. And so he was claiming that he didn't do it -- we did.

****** Rhodes Hospital Room ******

STATE ATTORNEY: Okay, Mr. Rhodes. Who had the gun in their hands when the first shot was fired?

RHODES: *[overly helpful, exaggerating]* When the gun first went off, Sonia was the one holding the gun. *[then scrambling]* This is to the best of my knowledge, I am not one hundred percent sure. To the best of my knowledge, she fired two shots, I believe then Jesse pulled the gun from her and shot him one more time and then he shot the other cop twice.

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Then I started to go toward my car, to get in, it didn't even enter into my mind, but Jesse said, "Get in the police car. We have got to get out of here," or something, and I said, "No," you know, *"what happened?!"* Anyway I did get in the police car, I was damn near in shock myself.

********back to Sunny*********

SUNNY: **(Pg 35 – 36)** *[to audience]* They tell you exactly how they're gonna do it. They're gonna send 2,200 volts of electricity through your body until you're dead. And then they ask you if you have anything to say to that, and really it's kind of dumbfounding. So after the judge read the sentence, I just said, "Are you finished?" I didn't have anything to say. What do you say? How can you say anything to that?

They decided to clear out an entire disciplinary unit at the women's prison. It's a very old prison, it's like a dungeon-type place. It was six steps from the door to the toilet bowl -- you could stretch out your arms and touch both walls. They take your clothes; they give you a number, so basically they're taking . . . who you ***are*** from you. You no longer have a name, you're a number. You're locked inside this ***tomb***. It's like you're thrown to the bottom of the well.

(Pg 43-44) First I had to decide, I am not going to let them do this to me. 'Cause if you sit there, rubbing two sticks together and crying on your sticks, they're never gonna make a spark. But, you know, if you stop feeling sorry for yourself, just because you're determined not to believe in hopelessness, then a spark happens, and then you just keep fanning that little spark until you got a flame.

And I realized that it was like a big trick. That I wasn't just a little lump of flesh that they could put in a cage. And I decided that I would have faith, that there was some power out there greater than them, to which I could make my appeal.

Now, you people that don't believe, you could say I was like Dumbo and I put this feather in my nose and I flew because I could fly anyway. Or you could say that there really is something out there, and if we have faith in it and we appeal to it, it will answer us. And

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maybe we're both right. I don't know.

(Pg 46-47) In 1979, Walter Rhodes wrote the following letter to the judge.

RHODES: I, Walter Norman Rhodes, hereby depose and say that I am under no duress nor coercion to execute this affidavit. On February 20, 1976, at approximately 7:15 a.m., I did, in fact, shoot to death two law enforcement officers with a nine-millimeter Browning pistol.

My previous testimony against Jesse Tafero and Sonia Jacobs was ***false*** and part of the statements I was instructed to make by the assistant state attorney, who did coerce me into lying.

SUNNY: Keep in mind that I wasn't released until 1992. So I'll just give you a moment to reflect: From 1976 to 1992, just remove that entire chunk from your life, and that's what happened. *[long pause]* But after all that, one day, the guard came into my cell and told me I was getting out. I thought he was trying to trick me. *(cell door opening)* And it was just so ***joyous***. I mean, I know a lot of people are angry, and I was angry some, but I didn't want to waste my time being mad.

(Pg 51) You see, I got another chance, because I looked for it. I looked to turn a pile of manure into flowers. I didn't even get lemons; I got manure *[laughs]*. I mean, I'm not glad for what happened to me -- when I was in there, my parents died, my children grew up without a family . . . and my husband was executed -- very, very brutally: Jesse's execution was known worldwide. The chair malfunctioned and made a mess of it. And – *(pause)* they had to pull the switch three times.

And he didn't die. It took ***thirteen and a half*** minutes for Jesse to die. Three jolts of electricity that lasted fifty-five seconds each. Almost a minute. ***Each.*** Until finally flames shot out from his head, and smoke came from his ears, and the people that came to see the execution, on behalf of the press, are still writing about it. Years afterwards. Why do we do that?

(Pg 52) I want to be a living memorial. When I die, I want 'em to plant tomatoes on me, or

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apple trees or something, so that I can still be part of things. And while I'm still alive, I'm planting my seeds everywhere I go, so that they'll say, "I once heard this woman, and she didn't let them stop her, and she didn't get crushed, and if that little woman person can do it, then I can do it." And ***that's*** my revenge. That's my legacy, and my memorial.

You know, I've never been to Jesse's grave, and for a long time it was a bone of contention between his mother and me. But I explained to her, I said, "That grave is not where Jesse really is." I said, "That grave is your monument, and this is mine. My life is my monument."

SOURCE INFORMATION

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AWARD HISTORY

2004 National Qualifier
2005 National Qualifier
2006 National Qualifier
2007 National Qualifier
2009 National Qualifier
2010 National Qualifier
2011 National Qualifier
2012 National Qualifier
2014 National Qualifier
2021 National Qualifier
2024 National Qualifier
CA State Qualifier
IL State Qualifier
KS State Qualifier
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**Source information for the introduction and additional information can be found at the The National Registry of Exonerations*
https://www.law.umich.edu/special/exoneration/Pages/about.aspx

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